

Prempal Singh v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 September 2022 · Writ-C No. 24745 of 2022 · **Writ disposed; petitioner relegated to a clause 6.5 objection before the Executive Engineer; demand dated 06.04.2022 kept in abeyance for two months or until that decision.**

HEADNOTE

A consumer disputing computation of electricity charges must invoke paragraph 6.5 of the Electricity Supply Code, 2005 by filing an objection before the concerned Executive Engineer. The Allahabad High Court disposed of the writ on that alternate remedy, directing the objection to be filed within two weeks and an expeditious decision on all points, preferably within four weeks. The demand notice dated 6 April 2022 was kept in abeyance for two months or until that decision, whichever is earlier; default in filing the objection leaves the licensee free to proceed.

FACTUAL SUMMARY

Prempal Singh, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., filed Writ-C No. 24745 of 2022 in the Allahabad High Court disputing the computation of electricity charges on his connection. The challenge included a demand notice dated 6 April 2022 issued by the distribution licensee. Counsel for the petitioner and for the respondents were heard. The Court did not quantify the bill; the controversy presented was a consumer billing dispute over how charges had been computed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

computation of charges — clause 6.5 objection

HOLDING

A dispute as to computation of electricity charges is to be raised by objection under paragraph 6.5 of the Electricity Supply Code, 2005 before the concerned Executive Engineer. The writ is disposed of with a direction to file that objection within two weeks; the Engineer shall then take an expeditious decision in accordance with law on all points of objection, preferably within four weeks of receipt. The demand notice dated 6 April 2022 is kept in abeyance for two months or until that decision, whichever is earlier; if the objection is not filed in time, the licensee may proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ challenging computation of charges disposed by relegating the consumer to an Executive Engineer objection under paragraph 6.5, without a merits decision on the bill. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Paragraph 6.5 identified as the statutory forum for a dispute over computation of electricity charges. ¶ 1

billing-objection-to-executive-engineer-under-6.5 Petitioner directed to file the clause 6.5 objection before the concerned Executive Engineer within two weeks; the Engineer to decide all points preferably within four weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE COMPUTATION OF ELECTRICITY CHARGES AND OF THE DEMAND NOTICE DATED 06.04.2022

Left to the Executive Engineer on a clause 6.5 objection. ¶ 1

